

JUDGMENT SHEET
IN THE LAHORE HIGH COURT,
RAWALPINDI BENCH, RAWALPINDI
JUDICIAL DEPARTMENT

Intra Court Appeal No.44 of 2025

Jhelum Homeopathic Medical College, Jhelum **V/S** *Federation of Pakistan etc.*

J U D G M E N T

Dates of hearing	02.04.2026
Appellant(s) by	Mian M. Salman Idrees, Amir Shahzad Jhammat and Bilal Ahmed Malik, Advocates.
Respondent(s) by	Mr. Haseeb Shakoor Paracha, Additional Attorney General for Pakistan with Barrister Zain Mansoor, Assistant Attorney General and Mr. Muhammad Irshad, Assistant Advocate General.

JAWAD HASSAN, J. Through this Intra Court Appeal in terms of Section 3 of the Law Reforms Ordinance, 1972 (***the “Ordinance”***), the Appellant has challenged the validity of impugned judgment dated 04.06.2025 (the ***“impugned judgment”***) passed in Writ Petition No.401 of 2022 by the learned Single Judge in Chamber whereby the constitutional petition filed by the Appellant was dismissed.

2. Learned counsel for the Appellant Mian M. Salman Idrees, Advocate *inter alia* contends that the learned Judge in Chamber has erred in law and facts failing to appreciate that Section 21(2) of the Unani, Ayurvedic and Homeopathic Practitioners Act, 1965 (the ***“Act”***) is patently unconstitutional, being violative of Articles 4, 8, 18, 25 and 25-A of the Constitution of the Islamic Republic of Pakistan, 1973 (the ***“Constitution”***); that the provision of the

“Act” referred to above creates an unreasonable and hostile discrimination against students seeking admission in the Homeopathy system of medicine, inasmuch as it imposes restrictions and disabilities not applicable to similarly placed students of Unani and Ayurveda systems of medicine, without any intelligible differentia or lawful justification.

3. On the other hand, learned Law Officer vehemently opposed the arguments advanced by the learned counsel for the Appellant and prayed for dismissal of the appeal on the grounds that the impugned order has been passed strictly in accordance with law as such does not call for any interference by this Division Bench.

4. We have heard the arguments and have perused the record.

5. At the very outset, it is observed that the present appeal is nothing but a reiteration of arguments which have already been thoroughly examined and conclusively repelled by the learned Single Judge in Chamber through a well-reasoned and comprehensive judgment. Pertinently, the core grievance of the appellant relates to the amendment made by the Government in Section 21(2) of the “Act” whereby, while retaining Matriculation with Science or an equivalent qualification from a recognized Board or University in Pakistan as the minimum mandatory requirement, a preference has been accorded to candidates possessing intermediate or higher qualifications with Science for admission to a recognized institution of Homoeopathy. The objection of the appellant, in essence, is directed against such preferential treatment being extended to candidates with higher qualifications over those meeting the minimum prescribed eligibility criteria. The challenge mounted by the appellant essentially calling into question the wisdom and validity of legislative action through writ petition which was dismissed vide the “*impugned judgment*”. It evinces from the “*impugned*

judgment” that the learned Single Judge in Chamber, after examining the statutory scheme of the “Act”, has rightly concluded that Homeopathy and Unani/Ayurvedic systems of medicine constitute distinct disciplines and independent fields and any comparison sought to be drawn between them for the purposes of invoking Article 25 of the “*Constitution*” is wholly misconceived. We have considered the matter and find that the legislature, being fully competent, was well within its domain to accord preference to candidates possessing Intermediate or higher qualifications with Science for admission to recognized institutions of Homoeopathy and such policy determination is not only legally sustainable but also grounded in sound academic and professional rationale. The field of Homoeopathy, like other systems of medicine, requires a foundational understanding of scientific subjects such as Biology, Chemistry, and Physics, which is significantly strengthened at the Intermediate and higher levels of education. Candidates with advanced academic exposure are better equipped to comprehend complex medical concepts, diagnostic methodologies, and pharmacological principles, thereby enhancing the overall standard of education and practice within the discipline. In contrast, the earlier minimum eligibility of Matriculation with Science merely ensured basic entry-level competence and did not adequately prepare students for the rigors of professional medical training. Therefore, the legislative intent to prioritize candidates with higher scientific qualifications reflects a progressive approach aimed at improving the quality of practitioners and ensuring better healthcare outcomes, and such preference cannot be termed arbitrary or unreasonable. Furthermore, the amendment brought through Section 21(2) of the “Act” did not offend Article 25 of the “*Constitution*” as the classification made by the legislature is founded upon an intelligible differentia, having a rational nexus with the object sought to be achieved and thus fully

meets the test of reasonable classification. It is by now well-settled that there exists a strong presumption in favour of the constitutionality of a legislative enactment which cannot be displaced on the basis of bald assertions or speculative pleas. Guidance to this effect can be sought from “THE PROVINCE OF SINDH through Chief Secretary, Government of Sindh, Karachi and others versus ABID ALI JATOI and others” (2025 SCMR 1058) whereby the Supreme Court of Pakistan, has held that beneficial legislation enacted under valid legislative competence must be enforced meaningfully and the Courts, through judicial review, are empowered to ensure that executive authorities comply with statutory mandates. Further this Court in case of “ABWA KNOWLEDGE PVT. LTD. Versus FEDERATION OF PAKISTAN, etc.” (PLD 2021 Lahore 436) has already expounded upon the concept of legislative competence with specific reference to Pakistan Medical Commission Admission Regulations 2020-21 wherein it was held that Medical and Dental Colleges Admission Test (MDCAT) constitutes a mandatory requirement under Section 18 of the Pakistan Medical Commission Act, 2020. The Pakistan Medical Commission (PMC), being a statutory regulator, possesses the legislative competence to frame regulations ensuring uniform standards of medical education, including matters relating to admissions and fee transparency. This judgment was thereafter upheld by the learned Division Bench of this Court vide judgment reported as “ABWA KNOWLEDGE PVT. LTD. through Director and another versus FEDERATION OF PAKISTAN, through Secretary, National Health Services and another” (2021 MLD 1455) and subsequently upheld by the Supreme Court of Pakistan in the case of “MAMOON WAZIR and others versus ABWA KNOWLEDGE VILLAGE (PVT) LIMITED FAISALABAD and others” (2022 SCMR 72). It is significant to mention here that the “impugned judgment” was reported in “JHELUM

HOMEOPATHIC MEDICAL COLLEGE, JHELMUM, through its Principal versus FEDERATION OF PAKISTAN through Secretary, Ministry of National Health Services Regulations and Coordination, Government of Pakistan and 3 others”
(2026 MLD 1), wherein the learned Single Judge in Chamber observed as follows:

7. Determination of qualifications for admission to institutions in any field is within the legislative competence of the government. The Act, 2021 was placed before the Majlis-e-Shura (Parliament) and after approval, it received assent of the President on 01st December, 2021. The amendment in Sub-Section (2) of the Act, 1965 in no way offends any of the fundamental rights of the petitioners more so, Article 18 of the Constitution as it in no way abridge the right of trade or profession of the petitioners embodied therein. The qualification so enhanced through the amendment is though directly related to the candidates willing to apply for admission in the institutions but none has come forward to challenge the vires of the same. There is no cavil that judiciary can examine the vires of legislation on the touchstone of the Constitution but the person throwing any challenge to the provisions of a statute is obliged to demonstrate that it either offends any of the fundamental rights or abrogate the provisions of the Constitution..

 8. So far contention of learned counsel for the petitioners that there is clear discrimination with the students, seeking admission in the Homeopathy as compared to the Unani or Ayurvedic System of Medicine; suffice to observe that both the fields are not similar and akin. Article 25 of the Constitution ordains that all citizens are equal before law and entitled to equal protection of law and also guarantees that there shall be no discrimination on the basis of sex but by now it is well entrenched principle that equality does not prohibit classification for differently placed persons. The doctrine of reasonable classification is founded on the assumption that the State has to perform multifarious activities and deal with a vast

number of problems. Right of equality of citizens is always founded on an intelligible differentia, which distinguishes persons or things that are grouped together from those, who have been left out. Right of equality is always to be weighed amongst equal in all respects and it is not necessary that every citizen shall be treated alike in all eventualities. Thus, in the light of clear distinction between qualifications for Homeopathy and Unani or Ayurvedic System of Medicine, the contention of learned counsel for the petitioners is highly ill-founded”

6. In view of above, we are of the affirmed view that the learned Single Judge in Chamber has rightly observed that *“determination of qualifications for admission to institutions in any field is within the legislative competence of the government”*. The appellant has miserably failed to point out any provision of law or any principle of constitutional interpretation which may render the impugned provision unconstitutional. Rather, the challenge appears to be an attempt to invite this Court to sit in appeal over legislative wisdom, which is impermissible in law. In the case of “AYESHA IFTIKHAR and another versus FEDERATION OF PAKISTAN through Secretary, Finance Division, Islamabad and 4 others” (PLD 2026 Lahore 17) this Court, while making significant observations on the contours of legislative competence and its limits over final judicial pronouncements, emphasized that once a constitutional Court has interpreted a statutory provision and such interpretation has attained finality, neither executive nor legislature may override, ignore or even reinterpret it. The Court further clarified that legislative competence does not extend to altering or disregarding binding judicial interpretations and the executive is duty bound to implement such judgments in letter and spirit. Recently, the Federal Constitutional Court in the case of “ATTOCK CEMENT PAKISTAN LTD. versus PROVINCE OF BALOCHISTAN and another” (PLD 2026 Federal Constitutional Court 29)

crystalized certain principles regarding legislative competence and held that “*given the inherent difficulty in delineating legislative competencies with absolute precision, disputes often arise regarding whether a particular subject falls within federal or provincial domain. In such circumstances, the doctrine of pith and substance has served as an essential tool to determine the true nature and character of the legislation in question*”. The ultimate crux of the judgment was that the provincial amendment stood sustained by invoking the doctrines of pith and substance and double aspect legislation. The Court further held that incidental overlap with federal competence does not render provincial legislation ultra vires when its dominant purpose lies within provincial jurisdiction. Moreover, learned counsel for the Appellant has failed to show any illegality or perversity in the “*impugned order*” which has been passed in accordance with law and the principles laid down by the Supreme Court of Pakistan.

7. As a sequel, we fully agree with the findings of the learned Single Judge in Chamber and see no reason or justification to interfere in the same. Consequently, the instant Intra Court Appeal being devoid of any merit is hereby **dismissed**.

(TARIQ MAHMOOD BAJWA)
JUDGE

(JAWAD HASSAN)
JUDGE

APPROVED FOR REPORTING

JUDGE

JUDGE